



SPONSOR: Sen. Brown & Rep. Carson
Sen. Poore; Reps. Dukes, K. Johnson, Ortega

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 73

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO LETHAL VIOLENCE PROTECTIVE ORDERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend §7702, Title 10 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 7702. Commencement of action; procedure.

4 (a) A petitioner law enforcement officer may request relief under § 7703 ~~or § 7704~~ of this title by filing an
5 affidavit or verified petition.

6 (b) Any petitioner may request relief under § 7704 of this title by filing an affidavit or verified petition.

7 ~~(b)(c)~~ A petition for a lethal violence protective order must be filed in the county where the respondent resides.

SYNOPSIS

This bill clarifies that only law enforcement officers may petition for emergency relief in the Justice of the Peace Court pursuant to Title 10, Section 7703. The statute is currently ambiguous with regard to who may file pursuant to Section 7703. Section 7701(4) defines a "Petitioner" as a law enforcement officer or any person who would be qualified to file a Petition for Protection from Abuse. Section 7702(a) provides that "a petitioner may request relief under section 7703 (Emergency hearings) or Section 7704 (Nonemergency hearings)." However, Section 7703 only addresses the process a law enforcement officer must follow to procure a Lethal Violence Protective Order ("LVPO") and fails to mention any other class of petitioner. At the time of the passage of the LVPO statute, there was specific discussion and intention to prevent individuals from filing for emergencies in the Justice of the Peace Court for the same reason that citizen warrants are no longer accepted in that Court. This conclusion is borne out by the fact that Section 7703 does not prescribe any procedure or burden of proof an individual would need to meet to prevail in an emergency petition for a LVPO. As with Weapons Relinquishment Orders governed by Section 1448C of Title 11, this proposed bill requires requests for emergency relief to come through a law enforcement agency rather than directly from an individual member of the public. The bill removes the confusion that exists with the current wording of the statute.

Author: Senator Brown